

ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Grow Liberia, by and thru its Program Manager
Elizabeth Shelley and all its corporate officers, all
of the City of Monrovia, Montserrado County,
Republic of Liberia.....Movant

Versus

MRE, by and thru its General Manager/CEO
Whilemina G. M. Siaway and Whilimina Siaway
for herself, all of the City of Monrovia, Liberia
.....Respondents

GROWING OUT OF THE CASE:

MRE, by and thru its General Manager/CEO
Whilemina G. M. Siaway and Whilimina Siaway
for herself, all of the City of Monrovia, Liberia
..... Appellants

Versus

Grow Liberia, by and thru its Program Manager
Elizabeth Shelley and all its corporate officers, all
of the City of Monrovia, Montserrado County,
Republic of Liberia..... Appellee

Motion to Dismiss

Appeal

GROWING OUT OF THE CASE:

MRE, by and thru its General Manager/CEO
Whilemina G. M. Siaway and Whilimina Siaway
for herself, all of the City of Monrovia, Liberia
..... Plaintiffs

Versus

Grow Liberia, by and thru its Program Manager
Elizabeth Shelley and all its corporate officers, all
of the City of Monrovia, Montserrado County,
Republic of Liberia..... Defendant

Action of Damages for Wrong

Heard: October 27, 2021

Decided: January 27, 2022

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Mark M.M. Marvey of the Heritage Partners & Associates, Inc. appeared for the movant. Counsellor J. Daku Mulbah of the LEX Group, Inc. appeared for the respondents.

The counsel representing the respondents, by leave of Court, and in response to the movant's motion to dismiss, made a submission on the minutes of the Court, conceding the legal and factual averments in the motion to dismiss, that the respondents failed to file an approved appeal bond and to serve and file the notice of completion of the appeal, two of the mandatory steps necessary for perfecting of an appeal.

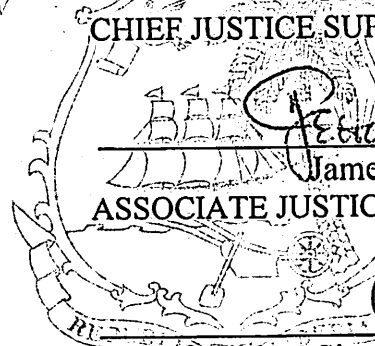
The law provides that, "all admissions made by a party himself or by his agent acting within the scope of his authority are admissible." Civil Procedure Law Rev. Code 1:28.8(1). In view of the foregoing, it is hereby

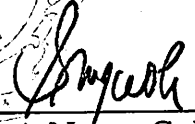
ADJUDGED:

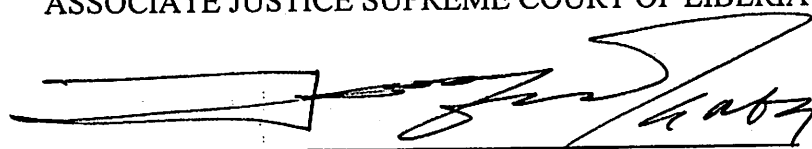
That the motion to dismiss the appeal is hereby granted, and the appeal ordered dismissed as a matter of law. The Clerk of this Court is ordered to send a mandate to the trial court commanding the judge presiding therein to resume jurisdiction over this case and enforce its judgment. Costs are ruled against the respondents. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HAND AND SEAL OF THE
SUPREME COURT OF LIBERIA, THIS 27TH DAY
OF JANUARY, A. D. 2022



Francis S. Korkpor, Sr.
CHIEF JUSTICE SUPREME COURT OF LIBERIA

Jamesetta H. Wolokolie
ASSOCIATE JUSTICE SUPREME COURT OF LIBERIA

Sie-A-Nyene G. Yuoh
ASSOCIATE JUSTICE SUPREME COURT OF LIBERIA

Yussif D. Kaba
ASSOCIATE JUSTICE SUPREME COURT OF LIBERIA

Note: Mr. Justice Joseph N. Nagbe being without the bailiwick of the Republic, did not participate in the hearing and determination of this case; hence, he did not sign this Judgment.